

19STCV21731 19STCV21731

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#19

JOHNSON v. SPECIAL UNIT SECURITY,
INC.

CASE NO.: 19STCV21731

HEARING: Wednesday, September 9, 2026, at 9:30 AM

Plaintiff DEVONNAIR J. JOHNSON's Motion to Compel Defendant
EDMON MURADYAN's Deposition is CONTINUED to Wednesday, October 21,
2026, at 9:30 AM in Dept. SE-R.

Moving Party to give notice.

Background

On June 20, 2019, Plaintiff
DEVONNAIR J. JOHNSON ("Plaintiff") filed this action against Defendants SPECIAL
UNIT SECURITY dba MARSHALL SECURITY TRAINING ACADEMY & RANGE; EDMON
MURADYAN ("Muradyan" or "Defendant"); and DOES 1 through 100, inclusive.

Plaintiff's Complaint alleges the
following causes of action:

(1) Assault;

(2) Battery;

- (3) False Imprisonment;
- (4) Conversion;
- (5) Negligence;
- (6) Misclassification of Employees;
- (7) Failure to Provide Meal Periods;
- (8) Failure to Provide Rest Breaks;
- (9) Failure to Pay Overtime Wages;
- (10) Failure to Pay All Wages Owed Every Pay Period:
- (11) Failure to Pay All Wages Upon Separation;
- (12) Failure to Furnish Timely and Accurate Wage Statements;
- (13) Failure to Maintain Employment Records;
- (14) Violation of California's Unfair Competition Law;
- (15) Intentional Infliction of Emotional Distress; and
- (16) Negligent Infliction of Emotional Distress

On August 31, 2022, Plaintiff brought the instant motion to Compel Defendant Muradyan's Deposition.

On May 23, 2023, the Court stayed the instant matter pending the related bankruptcy proceeding.

On or about March 19, 2026, the Bankruptcy Court dismissed bankruptcy proceeding. Thus, the Court retains jurisdiction over the instant matter.

Discussion

On June 15, 2022, Plaintiff

served a deposition notice setting Defendant's deposition for June 17, 2022.

Plaintiff contends Defendant appeared for deposition but failed to produce

Documents as agreed upon by both parties and failed to produce video footage of the incident.

After deposition, Defense Counsel

stated Defendant would produce the documents and video after a

protective order. The Court believes a protective order is necessary to protect privacy of third-parties/nonparties to this action.

However, the Court does not believe Counsel have

exhausted their meet and confer obligations pursuant to Code. Indeed,

Counsel Turner declared, "On June 21, 2022, after being met with silence to my previous email, I followed up by asking, "Good Morning Mr. Papazian, this is our second attempt to meet and confer with you regarding your clients' failure to produce and of the requested documents at the deposition. We previously met and conferred with you once on the record. Please advise if you will be producing the requested documents attached to our deposition notice for Mr. Muradyan along with the video that your client agreed to produce. If you do not produce the requested documents and video we will be forced to file a motion to compel." (Turner Decl., ¶ 7.)

Counsel are advised that their meet and confer

efforts should go beyond merely sending letters stating their respective positions. (See *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431,

1439.) "A determination of whether an attempt at informal resolution is adequate... involves the exercise of discretion. The level of effort at an informal resolution which satisfies the 'reasonable and good

faith attempt' standard depends upon the circumstances. In a larger, more

complex discovery request, a greater effort at informal resolution may be warranted. In a simpler, or more narrowly focused case, a more modest effort may suffice. The history of the litigation, the nature of the interaction

between counsel, the nature of the issues, the type and scope of the discovery requested, the prospects for success and other similar factors can be relevant.

Judges have broad powers and responsibilities to determine what measures and procedures are appropriate in varying circumstances." (*Obregon v. Sup. Ct.* (1998) 67 Cal.App.4th 424, 431.)

Therefore, the Court ORDERS the parties to meet and confer. Thereafter, the parties must submit a JOINT PROTECTIVE ORDER.

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If the parties are unable to stipulate to a protective order, each party may submit a proposed protective order to the Court by Friday, October 9, 2026. The Court will consider the proposed protective orders and issue a ruling thereafter.

Once a protective order is issued, Defendant shall produce Defendant for deposition along with the requested documents and video. The Court will provide a deadline for the continued deposition at the next hearing.